

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
BLAYN CROSSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, and DETECTIVE TYLER
EHRLEIN, Tax # 926798, POLICE OFFICER JEAN-
BERNARD REMY, and POLICE OFFICERS JOHN
DOES# 1-10 (names and number of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

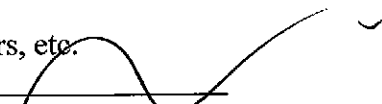
The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 7, 2013

Yours, etc. 

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Detective TYLER EHRLEIN, Tax # 926798, 115th Precinct, 92-15 Northern Blvd.,
Queens, NY 11372
POLICE OFFICER JEAN-BERNARD REMY, 1 Police Plaza, Room 1200, NY, NY

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, BLAYN CROSSON, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 8, 2011, at approximately 3:30 p.m., plaintiff, BLAYN CROSSON, while lawfully walking on the sidewalk in the vicinity of 208 Hull Street, Brooklyn, New York, was subject to an unlawful, stop, search, detention, false imprisonment, false arrest, and use of excessive force by the defendant New York City police officers. Subsequently, plaintiff BLAYN CROSSON was also subject to a malicious prosecution by the defendant New York City Police Officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, caused the unjustifiable arrest of, used excessive force on, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff BLAYN CROSSON is a resident of the State of New York.

3. Detective TYLER EHRLEIN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Detective TYLER EHRLEIN, is being sued in his individual and official capacities.

5. Police Officer JEAN-BERNARD REMY, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. Police Officer JEAN-BERNARD REMY, is being sued in his individual and official capacities.

7. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

8. Police Officers John Does #1-10 are being sued in their individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

14. The CITY OF NEW YORK held a hearing pursuant to 50-h of the general municipal law on or about July 18, 2012.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On November 8, 2011, at approximately 3:30 p.m., plaintiff BLAYN CROSSON lawfully exited his girlfriend's house, located at 230 Hull Street, Brooklyn, New York, and began walking on the sidewalk toward a corner store located at the corner of Mother Gaston and Hull Streets.

18. After plaintiff BLAYN CROSSON walked approximately 200 feet and was in the vicinity of 208 Hull Street, an unmarked NYPD van suddenly stopped in the street near plaintiff.

19. Defendant police officers TYLER EHRLEIN and JEAN-BERNARD REMY unlawfully approached plaintiff, and without reasonable suspicion, probable cause, or any legal justification, and asked whether they could search plaintiff.

20. Plaintiff BLAYN CROSSON told the defendant police officers that they could not search him.

21. Defendant police officer TYLER EHRLEIN unlawfully and without reasonable suspicion or legal justification frisked plaintiff BLAYN CROSSON, over his clothing, touching all areas of his body.

22. Defendant police officer TYLER EHRLEIN then searched the inside of each of plaintiff's pockets and removed the contents therein, without probable cause or legal justification.

23. Defendant Police Officer TYLER EHRLEIN did not find any illegal drugs, weapons or contraband inside of plaintiff BLAYN CROSSON's pockets when he unlawfully searched plaintiff.

24. Plaintiff BLAYN CROSSON asked Defendant Police Officer TYLER EHRLEIN to explain why he stopped him, but defendant TYLER EHERLEIN refused to explain why he had stopped him or why he had searched inside of his pockets.

25. Defendant Police Officer JEAN-BERNARD REMY then approached plaintiff BLAYN CROSSON, in an extremely aggressive manner, causing plaintiff to fear for his safety.

26. Defendant Police Officer JEAN-BERNARD REMY unlawfully grabbed plaintiff BLAYN CROSSON in a rough and aggressive manner and physically carried plaintiff to the back of the van, and threw plaintiff down onto the floor of the van, without probable cause or any legal justification.

27. At no time did plaintiff BLAYN CROSSON commit a crime, nor did the defendant police officers have probable cause or reason to believe he committed a crime.

28. Nevertheless, the defendant police officers handcuffed plaintiff BLAYN CROSSON without legal justification or probable cause.

29. At no time did the defendant police officers recover any guns, drugs, or contraband of any kind from plaintiff.

30. Plaintiff was handcuffed and placed under arrest without legal justification or probable cause.

31. Defendant Detective EHRLEIN told plaintiff that he was a narcotics officer and that if plaintiff didn't "shut up" that he would put crack cocaine in his pocket.

32. Plaintiff became frightened because defendants threatened to plant crack on his person.

33. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

34. Plaintiff told the defendant officers that what they were doing to him was wrong. In response the defendants layed plaintiff face down on the floor of the van and applied extreme pressure to his legs for approximately 30 seconds, causing plaintiff to suffer severe pain.

35. Plaintiff BLAYN CROSSON was transported in a NYPD police vehicle to the 73rd precinct, located at 1470 E New York Ave, Brooklyn, NY.

36. After being detained several hours at the 73rd precinct, plaintiff was issued a DAT ticket that instructed him to appear in court on February 2, 2012, and was released from police custody.

37. On February 2, 2012, plaintiff appeared in Court and the charges against him were dismissed as facially insufficient.

38. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident, plaintiff had pain in his legs for a significant period of time.

39. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, use of excessive force, false arrest and malicious prosecution of plaintiff.

40. The unlawful stop, question, frisk, search, false imprisonment, false arrest, use of excessive force, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

41. On or about March 15, 2013, the CCRB substantiated the allegations made by plaintiff against Defendant Police Officer TYLER EHRLEIN.

42. Specifically, the CCRB found that Defendant Police Officer TYLER EHRLEIN abused his authority when he stopped plaintiff BLAYN CROSSON, he abused his authority when he frisked plaintiff, he abused his authority when he searched plaintiff, and that he abused his authority when he arrested plaintiff.

43. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, search, and arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon on their person, or that they had violated any law or ordinance.

44. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, searching, and arresting individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these searches and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, searching, and arresting individuals without a factual basis supporting a legal reason to do so.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment

of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

47. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

55. Defendants lacked probable cause to search plaintiff.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop and Frisk

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The conduct of defendants in stopping and frisking plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

62. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

65. Plaintiff repeat and reallege paragraphs 1 through 64 as if fully set forth herein.

66. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution, the laws of the State of New York and New York State common law.

67. Defendants commenced and continued a criminal proceeding against plaintiff.

68. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

69. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

70. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The use of excessive force by defendants in throwing plaintiff onto the floor of the police van and applying extreme pressure to his legs for approximately 30 seconds was an objectively unreasonable physical seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

75. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

78. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon on their person, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

79. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

80. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

81. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

82. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

83. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

84. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff BLAYN CROSSON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 7, 2013

By: _____

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
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11 Park Place, 10th Floor
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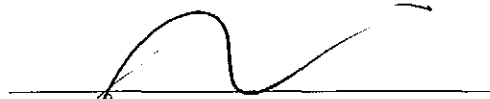
TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Detective TYLER EHRLEIN, Tax # 926798, 115th Precinct, 92-15 Northern Blvd.,
Queens, NY 11372
POLICE OFFICER JEAN-BERNARD REMY, 1 Police Plaza, Room 1200

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 7, 2013


STUART E. JACOBS